

Here, based on the failure to produce RPD No. 2-31 and the unopposed motion to compel, the Court will GRANT sanctions. However, based on the straightforward nature of the identical requests for RPD, Set One for Plaintiff Rabindra Singh and Anthony Colucci the court will award a total of 5 hours total (2.5 hours per case) for preparing and filing the motion and appearing for the hearing at the requested rate of \$300.00 per hour. Even if the motion was unopposed, Rule of Court, rule 3.13148(a) allow for sanctions one the motion is filed. The motions to compel pertaining to the five plaintiffs were filed over one year ago and discovery still has not bee produced.

V. CONCLUSION

Based on the foregoing, the motion to compel responses to SPROG and FROG for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is DENIED deemed MOOT based on Plaintiffs lodging verified responses on February 3, 2026 showing substantial compliance prior to the hearing.

The motion to compel and RPD Nos. 2-31, Set One for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is GRANTED. Plaintiffs are to provide verified code-compliant responses within fifteen (15) days of the Order. The motions for sanctions is GRANTED in part and DENIED in part. The total requested amount is DENIED.

Plaintiff is ordered to make payment of \$750 in Line #3 and \$750 in Line #4 for Defendant's counsel within fifteen (15) days of the Order.

Moving party to prepare the Order.

Calendar Lines # 5 - 6

Case Name Niraj Gandhi et al vs Matthew Ginsberg et al

Case No. 24CV455059

Motion to Intervene and Expunge Lis Pendens (Line #5) and

Motion for Protective Order and Request for Sanctions (Line #6)

Non-party Rancho Higuera LLC ("Rancho") filed the motions to intervene (line #5) and motion for protective order and request for sanctions (line #6).

MOTION TO INTERVENE (LINE #5)

I. BACKGROUND

On August 6, 2025, non-party Rancho Higuera LLC ("Rancho") filed a motion to intervene and expunge lis pendens under Code of Civil Procedure 405.30.

No opposition papers were filed. Opposition papers were due on May 8, 2026 per Code of Civil Procedure section 1005(b). A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On May 14, 2026, non-party Rancho Higuera LLC filed a notice of non-opposition to its motion to intervene and filed a proposed Answer.

The Court has carefully reviewed the moving papers: non-party Rancho's notice of motion, memorandum of points and authorities, Declaration of Richard B. Jacobs and attached Exhibit 1-7 and proof of service (totaling 83 pages); and the pleadings. The motion was accompanied by a proof of service indicating overnight delivery and electronic service on August 6, 2025.

II. LEGAL STANDARD

A. LIS PENDENS

Pursuant to Code of Civil Procedure section 405.30: “At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice.” (Code of Civ. Proc. § 405.30).

Upon timely application, the court shall permit a nonparty to intervene in the action or proceedings if either of the following conditions is satisfied:

- (A) A provision of law confers an unconditional right to intervene.
- (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.
- (C) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc. § 387, subd. (d)(1)–(2)).

Pursuant to Code of Civil Procedure section 405.32, “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” “Unlike other motions, the burden is on the party opposing the motion to expunge—i.e., the claimant-plaintiff—to establish the probable validity of the underlying claim.” (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 319). “[T]he plaintiff must at least establish a prima facie case. If the defendant makes an appearance, the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (*Ibid.*). “[O]nly ‘a preponderance of the evidence’ will save a lis pendens once a motion to expunge has been properly made.” (*Burger v. Superior Court* (1984) 151 Cal.App.3d 1013, 1019). “If the claimant does plead a real property claim, but the claim pleaded has no evidentiary merit, the lis pendens must be expunged upon motion under [section] 405.32. By expressly distinguishing the concepts of pleading and evidence in this fashion, the statute makes clear that factual merit is also necessary to the maintenance of a lis pendens.” (*Palmer v. Zaklama* (2003) 109 Cal.App.4th 1367, 1377–78).

“A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged.” (Code Civ. Proc., § 405.20; unspecified references are to the Code of Civil Procedure.) “‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility.” (Code of Civ. Proc. § 405.4). “In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.” (§ 405.31.) “In proceedings under this chapter, the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” (§ 405.32.) And “[o]nce a notice of pending action has been expunged, the claimant may not record another notice of pending action as to the affected property without leave of the court in which the action is pending.” (§ 405.36.)

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B. LEAVE TO INTERVENE

Code of Civil Procedure section 387(d) provides mandatory intervention upon timely application by a nonparty when either “[a] provision of law confers an unconditional right to intervene or “[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.”

Section (d)(2) provides permission intervention upon timely application, discretion to “permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” To establish a direct and immediate interest in the litigation for purposes of permissive intervention, a non-party seeking intervention must show that he or she stands to gain or lose by direct operation of the judgment, even if no specific interest in the property or transaction at issue exists. (*Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1201).

A nonparty “shall petition the court for leave to intervene by noticed motion or by ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.” (Code of Civ. Proc. § 387(c)).

C. JUDICIAL NOTICE

Evidence Code section 452 provides that the court may take judicial notice of “official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,” “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States,” and “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subs. (c), (d), and (h).) “Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.” (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374).

Here, nonparty Rancho requests judicial notice of **Exhibit 1:** Grant Deed. Assessor Parcel Number 654-16-006 file stamped June 17, 2025. The Court will grant judicial notice, but does not accept the truth of its contents or accepts particular interpretation its meaning. Rancho seeks judicial notice of **Exhibit 2:** Plaintiff’s Recording of Lis Pendens against Rancho’s property filed December 27, 2024 is granted, but does not accept the truth of its contents or accepts particular interpretation its meaning

III. ANALYSIS

Here, nonparty Rancho seeks leave to intervene to expunge the notice of lis pendens recorded in this matter. Rancho asserts that it is the owner of the property located at Assessor Parcel Number 654-16-006. (Rancho’s motion, at p. 3; Exhibit 1).

Rancho asserts it has an unconditional right to intervene because it has an interest in protecting its property rights. (Rancho’s motion, at p. 3). Essentially, Rancho asserts there is no party currently representing the interest of Rancho in this action who has the same interest in expunging the lis pendens. Rancho claims it has met-and-conferred multiple times with the parties and while defendants have no objection, the plaintiffs refuse to stipulate prior to deposing Rancho as a nonparty. (*Id.*, at p.4; Declaration of Richard Jacobs at p. 6). Rancho argues that the plaintiff attempts to harass Rancho and obtain confidential master gate codes for its property. (Rancho’s motion, at p. 4). Rancho seeks a protective order against the plaintiff (line #5) for attempting to “shortcut the ultimate resolution of the case through discovery rather than a Court ruling” and serve noncompliant deposition notices. (*Id.*; Declaration of Jacobs at p. 6; Exhibit 3--6).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Nonparty Rancho has demonstrated an interest relating to the property or transaction that is the subject of the action. As the owner of the property, Rancho is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

IV. CONCLUSION

Based on the foregoing, the unopposed motion to intervene is GRANTED and expunge lis pendens is GRANTED. Moving party is to prepare the formal Order.

MOTION FOR PROTECTIVE ORDER & REQUEST FOR SANCTIONS (LINE #6)

I. BACKGROUND

On August 11, 2025, non-party Rancho Higuera LLC (“Rancho”) filed a motion for a protective order and request for sanctions in the amount of \$11,430.00 against Plaintiffs’ counsel John H. Domingue and Rossi Domingue LLP. The motion was accompanied by a proof of service indicating overnight delivery and electronic service on August 11, 2025. This motion was filed after the motion to intervene that was filed on August 6, 2025.

The plaintiffs oppose the motion and filed opposition papers on May 8, 2026.

On May 14, 2026, the defendant filed a response in response to the plaintiffs’ opposition.

The Court has carefully reviewed the moving papers: non-party Rancho’s notice of motion, memorandum of points and authorities request for judicial notice, Declaration of Richard B. Jacobs and attached Exhibit 1; Declaration of Ben Eilenberg, and Exhibits 1-4, and proof of service (totaling 100 pages); Plaintiffs’ opposition (totaling 10 pages); Declaration of John F. Domingue in support of Plaintiffs’ opposition and attached Exhibits 1-2 (totaling 19 pages); Rancho’s reply brief (totaling 10 pages).

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2025.420(b), “the court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The courts have considerable discretion in granting and crafting protective orders. (*Raymond Handling Concepts Corp. v. Superior Court* (1995) 39 Cal.App.4th 584, 588). Section 2031.060 provides that a party can move for a protective order “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded.” (Code Civ. Proc., § 2031.060(a)). The court may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense upon a showing of good cause. (*Id.*, § 2031.060(b)). A court may find that justice requires to protect a party from “unwanted annoyance, embarrassment or oppression or undue burden and expense.” (Code Civ. Proc., § 2030.090, subd. (b)). The burden of proof is on the party seeking the protective order to show “good cause” for the order he or she seeks. (*Fairmont Insurance Co. v. Superior Court* (2000) 22 Cal.4th 245, 255). A motion for a protective order “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §

2030.090). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

Under the Code of Civil Procedure section 1987.1, a court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., §1987.1; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2008) ¶ 8:598. *See also generally* Cal. Prac. Guide: Civ. Trials & Ev. (The Rutter Group 2008) ¶1:91).

However, good cause must be established as “[i]n accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 172; *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). California’s liberal approach to permissible discovery generally has led the courts to resolve any doubt in favor of permitting discovery. (*Id.* at p. 173). In doing so, the courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the nondiscoverable rather than denying discovery of information vital to preparation or presentation of the party’s case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

III. ANALYSIS

B. REQUEST FOR JUDICIAL NOTICE.

As a nonparty Rancho seeks a protective order from the court to protect third party confidential and sensitive information. (Defendant’s Motion, at p. 12-13). Rancho seeks the following relief: a protective order that the deposition not take place until the motion to intervene is heard; Rancho does not have to provide confidential financial, development, and security information in deposition; and monetary sanctions against the plaintiff’s and their attorneys. (*Id.*, at p. 14).

Plaintiff and Defendants (the “parties”) and Rancho agree that there is a non-exclusive easement record on Rancho’s property (Assessor Parcel Number 654-16-006) for ingress and egress to the property. (Rancho’s motion, at p. 6). When Rancho purchased the property there was a security gate on the property that runs across the easement. (*Id.*). Defendant provided access codes for the gate to Plaintiffs. (*Id.*). Rancho claims that Plaintiff seeks master codes for the gate to reset the codes. (*Id.*). Rancho and Plaintiffs disagree as to whether Plaintiffs should be deed co-owners of the gate, Plaintiffs must control the master codes to the gate, no changes to the gate can be made without Plaintiff’s permission. Rancho offered to remove the gate, but Plaintiff demanded ownership of the gate.

Plaintiffs oppose the motion and asserts that there is a dispute regarding the interference with the use of the property easement. (Plaintiffs’ opposition, at p. 2). Plaintiff and Defendant paid equally for a gate to be constructed across an easement. (*Id.*). Defendant maintains and controls access to ingress and egress through the gate over the easement via an electronic keypad. Defendant interfered with Plaintiff’s rights by refusing to give code access to the gate, which restricts Plaintiffs easement rights. (*Id.*).

Rancho asserts that the plaintiff initially agreed to add Rancho in the case by filing a First Amended Complaint or substituting a DOE. (Rancho’s Motion, at p. 8). However, Rancho refused to give the master security code to a nonowner of the gate. (Declaration of Jacobs). Thereafter, Plaintiff refused to add Rancho as a party and sent deposition notices for Rancho in an effort to obtain the master security code. (Rancho’s motion, at p. 8; Declaration of Jacobs; Exhibit 3). Rancho objected to the depositions on multiple substantive and procedural

grounds. (Rancho's motion, at p. 9; Declaration of Jacobs; Exhibit 4). Plaintiff sent a second deposition notice, which Rancho objected to based on the request for production of the master codes of the security gate. (*Id.*; Exhibit 5-6). Parties met-and-conferred about the depositions and bringing Rancho as a party without success. (*Id.*; Exhibit 7).

Plaintiffs contest Rancho's objections as meritless and asserts that its subpoenas for depositions were valid. (Plaintiffs' opposition, at p. 2). Plaintiffs refute Rancho's objections as a third party witness. (*Id.*). Code of Civil Procedure section 1987.1 allows the court to issue a protective order concerning a subpoena to protect a person from unreasonable or oppressive demands. (*Id.*, at p. 3). The party seeking the protective order bears the burden of making a good cause showing. (*Id.*). Plaintiff argues that Rancho cannot make a good cause showing that section 1987.1 applies. (*Id.*). Further, the plaintiffs emphasize the broad breadth of discovery that may be reasonably calculated to lead to the discovery of admissible evidence. Plaintiff emphasizes that its subpoena seems relevant information concerning the easement, Rancho's ownership of the subject property, and Defendant's interference with the easement including the master code for the gate. (*Id.*). Plaintiffs also asserts that it offered to stipulate to a protective order regarding potentially privacy issues. Plaintiffs argue that Rancho circumvented a valid subpoena for nearly a year. (*Id.*). Plaintiff requests the court to deny the motion for a protective order and sanction Rancho and its counsel in the amount of \$5,112.50. (*Id.*; Declaration of Domingue).

IV. SANCTIONS

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. "Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be wilful [sic]." (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Pursuant to Code of Civil Procedure section 1987.2, subdivision (a): "in making an order pursuant to motion made under. . . Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

Rancho seeks \$11,430.00 against Plaintiffs' and its counsel John H. Domingue and Rossi Domingue LLP for attorney's fees and cost under Code of Civil Procedure section 2030.030 for misuse of discovery. Mr. Jacobs attest that his hourly rate is \$550.00 and estimates spending 20.6 hours total on the motion. He attests to expending 15.6 hours in preparation of the motion and anticipates spending an additional 5 hours reviewing an opposition and preparing a response. Rancho also estimates that filing fees and motion reservation costs will amount to \$100.00. Here, no opposition was filed, thus the additional 5 hours requested is not at issue.

In opposition, the plaintiffs assert that Rancho's motion for a protective order and sanctions lack merit. (Plaintiffs' opposition, at p. 7-8). Plaintiff asserts that its subpoenas for deposition were proper and seeks to find discovery of admissible evidence and information of material facts at issue. Thus, under section 1987.2(a), Rancho cannot just substantial justification for seeking a protective order. (*Id.*). Thus, the plaintiffs request denying Rancho's motion for a protective order and sanctions. (*Id.*). For these same reasons, plaintiffs seeks sanctions in the amount of \$5,112.50 against Rancho and its counsel on the grounds it expended attorney's cost and fees for defending against a meritless motion. (*Id.*).

Here, the Court finds that parties are in genuine dispute over material facts. The Court does not find that Rancho makes a showing that the plaintiff failed to comply with discovery and that the failure was willful pursuant to section 2030.030. The easement of the gate and its codes are in dispute. As for the plaintiffs' request for sanctions under section 1987.1, the Court does not find that the motion was made in bad faith or without substantial justification.

V. CONCLUSION

Based on the foregoing, and in light of the court's ruling in Rancho's motion to intervene, that was granted, the court finds the motion for protective order as MOOT. The request for sanctions by Rancho and plaintiffs are DENIED. Moving party to prepare the formal Order.

Calendar Line # 7

Case Name Cavalry Spv I, Llc vs Gisela Rosas-Deciga

Case No. 25CV457476

Motion: Admissions Deemed Admitted

Before the court is Plaintiff Cavalry Spv I, Llc's ("Cavalry") motion for requests for admissions ("RFA") to be deemed admitted against Defendant Giesela Rosas-Deciga that was filed on September 30, 2025. The motion was accompanied by a proof of service indicating mail service on September 30, 2025.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026.

I. BACKGROUND

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion (totaling 2 pages), memorandum of points and authorities (totaling 3 pages), Declaration of Nordin Dhaliwal in support of Plaintiff's motion and attached Exhibits A-C (totaling 26 pages); proof of service, (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.
- (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).